

July 10, 2008



U.S. Department  
of Transportation

East Building, PHH-30  
1200 New Jersey Avenue S.E.  
Washington, D.C. 20590

**Pipeline and Hazardous  
Materials Safety Administration**

DOT-SP 14619  
(FIRST REVISION)

**EXPIRATION DATE: May 31, 2010**

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: OXEA Corporation  
Dallas, TX
2. PURPOSE AND LIMITATION:
  - a. This special permit authorizes the transportation in commerce of Class 3 hazardous material in DOT Class 105S tank cars with a maximum gross weight on rail greater than 263,000 pounds but not greater than 270,000 pounds. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated.
  - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
  - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 172.203(a) in that marking the special permit number on the shipping paper is waived; § 173.24b(a)(iii); § 173.24b(d)(ii); § 173.26; § 173.31(a) and § 179.13 in that the authorized maximum gross weight on rail is 270,000 pounds.
5. BASIS: This special permit is based on the application of OXEA Corporation dated November 16, 2007 submitted in accordance with § 107.105 and the public proceeding thereon. And additional information dated June 26, 2008 and July 2, 2008.

**July 10, 2008**6. HAZARDOUS MATERIALS (49 CFR § 172.101):

| <b>Hazardous Materials Description</b>                       |                               |                              |                      |
|--------------------------------------------------------------|-------------------------------|------------------------------|----------------------|
| <b>Proper Shipping Name</b>                                  | <b>Hazard Class/ Division</b> | <b>Identification Number</b> | <b>Packing Group</b> |
| Acetaldehyde                                                 | 3                             | UN1089                       | I                    |
| Aldehydes, flammable, toxic, n.o.s. (acetaldehyde, acrolein) | 3                             | UN1988                       | I                    |

7. PACKAGING: Prescribed packagings are either:

- a. DOT Specification 105A300W tank cars re-stenciled 105J300W with reporting marks and numbers UTLX 901595-901662, constructed under AAR Certificate of Construction F-947038 Rev. A; or
- b. DOT Specification 105A200W tank cars re-stenciled 105J200W with reporting marks and numbers UTLX 903439-903510, constructed under AAR Certificate of Construction A-957086 Rev. A.

8. SPECIAL PROVISIONS:

- a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modifications or changes are made to the package and it is reoffered for transportation in conformance with this special permit and the HMR.
- b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.
- c. Each tank car must be equipped with safety relief valves with a set-to-discharge pressure of 75 psig.
- d. Each tank may be loaded to a maximum gross weight on rail not to exceed 270,000 pounds, provided that the tank is not loaded in excess of the amount authorized per § 173.24b.

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e. Each tank car must meet the Association of American Railroads (AAR) Standard S-259 and may be operated only under controlled interchange conditions, as specified in the AAR Interchange Rules, and agreed to by participating railroads.

f. The shipping paper requirements of § 172.203(a) are waived.

g. MARKING - Each tank car operating under the terms of this special permit must be marked "DOT-SP 14619" in four inch letters and numerals on a contrasting background above the DOT Specification number.

9. MODES OF TRANSPORTATION AUTHORIZED: Rail freight.

10. MODAL REQUIREMENTS: The Federal Railroad Administration is to be notified if any unusual incident occurs during the movement by contacting the:

Federal Railroad Administration  
Office of Safety Assurance and Compliance  
RRS-12, Mail Stop 25,  
1120 Vermont Ave, N.W.  
Washington, D.C. 20590  
(202)493-6229 or 493-6248

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

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Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—"The Hazardous Materials Safety and Security Reauthorization Act of 2005" (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



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for Theodore L. Willke  
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

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Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at [http://hazmat.dot.gov/sp\\_app/special\\_permits/spec\\_perm\\_index.htm](http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm). Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: FRA/sln